

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Enoch Sowah	Team: Squad #04	CCRB Case #: 201705627	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 07/04/2017 5:20 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 1/4/2019	Precinct: 71
Date/Time CV Reported Wed, 07/12/2017 9:23 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/12/2017 9:23 AM

Complainant/Victim	Type	Home Address
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Ismael Rivera	09052	951149	071 PCT
2. SGT Keith Cheng	00644	929882	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Steven Caraballo	21893	952545	071 PCT
2. POM Ali Hassan	03582	946623	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Ismael Rivera	Discourtesy: Police Officer Ismael Rivera spoke discourteously to § 87(2)(b) and individuals.	A . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On July 12, 2017, § 87(2)(b) filed this complaint with the CCRB by phone.

On July 4, 2017, the residents of § 87(2)(b) in Brooklyn, organized a Fourth of July barbeque and music event in front of the building's patio, which is open to the public. § 87(2)(b) was in attendance, as were an estimated 30 to 40 people. § 87(2)(b) refused to identify any of the other attendees.

At approximately 5:20 p.m., PO Ismael Rivera and PO Steven Caraballo from the 71st Precinct walked onto the patio and approached an unidentified DJ who operated the music system. PO Rivera asked the DJ to turn off the music, but the DJ refused. The DJ and a group of approximately seven men, including § 87(2)(b) argued with the officer. § 87(2)(b) refused to identify the men he was with. During this argument, PO Rivera said to the group, "You could either turn this shit down or we are going to send the goon squad here and this whole party will be over" (**Allegation A**).

The group and the officers spoke for approximately three to five minutes, after which the officers left and the group continued with their festivities.

At approximately 10 p.m., PO Rivera and PO Caraballo received multiple radio calls about fireworks being set off from the patio. They returned to the patio and PO Rivera observed approximately 80 to 100 people on the patio, some of whom were setting off fireworks. PO Rivera radioed for backup and within two minutes Sgt. Keith Cheng and approximately 25 additional officers from the 71st Precinct arrived at the scene. The officers asked all the individuals on the patio to disperse.

The officers left after dispersing the crowd from the patio.

§ 87(4-b), § 87(2)(g)

No arrest, summonses, or injuries resulted from these incidents. There is no video footage of these incidents.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of August 15, 2017, no Notice of Claim has been filed (BR07).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has three other CCRB complaints (BR09):
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 - [REDACTED]
 - [REDACTED]
- PO Rivera has been a member of service for six years and has no prior CCRB complaints against him.
- Sgt. Cheng has been a member of service for 15 years and has 21 allegations stemming from 14 separate complaints, one of which was substantiated, § 87(2)(g)
 - In case 200715485, discourtesy and refusal to provide name and shield allegations were substantiated. The Board recommended Charges. The NYPD disposition was no disciplinary action due to the expiration of the statute of limitation.

Potential Issues

- § 87(2)(b) (BR01) felt he and the residents in his building were constantly being harassed by the police. § 87(2)(g)
- § 87(2)(b) (BR02) did not provide the names or contact information of the other individuals PO Rivera allegedly used profanity against, as they did not wish to participate in the complaint and had asked not to be contacted, though § 87(2)(b) was informed this would impede the investigation. A BADS search performed on July 12, 2017, for any arrests in the vicinity of the incident location yielded negative results (BR03). On August 28, 2017, the summons index log from the 71st Precinct was received, which yielded negative results for any summons issued in the vicinity of the incident location (BR04).
§ 87(2)(g)
- § 87(2)(b) (BR02) said that a portion of this incident was recorded on multiple cell phones, but he did not know any of the individuals who recorded this incident. A friend of § 87(2)(b) whose name he refused to provide, informed § 87(2)(b) that videos of the incident were posted on Facebook. § 87(2)(b) did not see these videos nor did he know which Facebook account the videos were posted on. § 87(2)(g)

Findings and Recommendations

Allegations not pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A - Discourtesy: Police Officer Ismael Rivera spoke discourteously to § 87(2)(b) and individuals.

§ 87(2)(g)

§ 87(2)(b) (BR01) said on July 4, 2017, the residents of his § 87(2)(b) in Brooklyn, organized a Fourth of July celebration on the building's patio, which is open to the general public. One of the residents erected a DJ stand with loudspeakers and played music at what § 87(2)(b) described as minimum volume. The residents, their families and friends, approximately 30 to 40 in number, barbecued and listened to music. § 87(2)(b) refused to identify any of the attendees at the event.

At approximately 5:20 p.m., as the festivities were still ongoing, PO Rivera and PO Caraballo walked onto the patio and approached a group of approximately seven men, including § 87(2)(b) by the DJ stand. PO Rivera asked that the music be turned off, but the men refused and told the officers that they had the right to play music because they lived in the complex.

Some of the men then cursed at the officers and told them to “get the fuck outta here...stop fucking harassing us.” PO Rivera replied, “You could either turn this shit down or we are going to send the goon squad over here and this whole party will be over.”

The group of men became upset and continued to curse at the officers, although § 87(2)(b) did not recall what was said. § 87(2)(b) did not curse at the officers. The officers and the group argued for approximately five to 10 minutes, after which the officers allowed them to continue to play the music. The officers then left. There was no arrest or summons as a result of this incident.

PO Rivera (BR05) provided a different account of this incident. He said he and PO Caraballo were stationed to the § 87(2)(b) which houses the patio, to provide visible police presence and ensure safety, given the high incidence of drugs, gun and gang activities in the neighborhood.

During one of their regular directed patrols, PO Rivera and PO Caraballo observed a group of approximately 20 to 25 individuals on the patio enjoying the holiday and listening to music that played on erected loudspeakers. PO Rivera and PO Caraballo did not observe anything out of the ordinary on the patio, except that the music was loud.

PO Rivera and PO Caraballo approached the male who operated the music system and PO Rivera asked him to lower the volume of the music. PO Rivera did not recall seeing or interacting with other civilians by the music stand. The male misinterpreted PO Rivera’s request and assumed he was being asked to turn off the music. He was thus unhappy and engaged the officers in a “rough” conversation. PO Rivera did not recall what was said, except that the male spoke in a raised voice tone, which was devoid of profanities. PO Rivera explained to the male that he was only being asked to lower the volume of the music and not to turn it off. PO Rivera did not recall exactly what he said to the male, but denied using any profanities against him. The male lowered the volume of the music and shook the hands of the officers. The officers then left and had no further interaction with the male.

PO Rivera said he interacted with § 87(2)(b) on the patio, but did not recall whether or not it was before or after his interaction with the male by the music stand. § 87(2)(g)

§ 87(2)(g) PO Rivera said he had a normal and cordial conversation with § 87(2)(b) and that the two spoke about the community programs § 87(2)(b) was involved in and how best the community could provide support for the youth in the neighborhood. The conversation with § 87(2)(b) lasted approximately five to 10 minutes and was devoid of any profanities.

Sgt. Cheng (BR06) was not present at the scene to witness this portion of the encounter. § 87(2)(g)

§ 87(2)(g). As such, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)

Squad: 4

Investigator: _____
Signature Print Date

Squad Leader: _____
 Title/Signature Print Date

Reviewer: _____

Title/Signature Print Date